

23STCV31606 23STCV31606

County: los-angeles

Division: Civil Law and Motion

Department: B

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Tentative Ruling

Shellmire v. Los Angeles County

Metropolitan Transportation Authority, Case no. 23STCV31606

Hearing date September 11, 2026

Defendant

LACMTA's Motion to Compel Plaintiff McGlothin's Deposition

Plaintiffs

Shellmire and McGlothin sue defendants Los Angeles County Metropolitan Transportation Authority ("LACMTA") and Nguyen for injuries arising from a motor vehicle accident when a LACMTA bus driven by Nguyen turned into their vehicle, causing injuries.

Defendant

LACMTA moves to compel McGlothin's deposition and for monetary sanctions against McGlothin and counsel. The court granted McGlothin's counsel's motion to be relieved 9/2/26 on the basis that counsel had lost contact with McGlothin. See 9/2/26 Min. Order. Prior to being relieved, McGlothin's former counsel filed an opposition on the same basis.

A

party may move for an order compelling the attendance and testimony of a deponent where the deponent fails to appear for examination following the service of a deposition notice. Code Civ. Proc. §2025.450.

LAMTA

noticed McGlothin's deposition for 4/2/26; no objections were served, and plaintiff failed to appear. Decl. Preciado, para. 3, exh. 1. LAMTA served a second notice of deposition for 7/17/26. Id. at para. 4, exh. 3.

McGlothin did not object but failed to appear. Id. LAMTA is entitled to an order compelling McGlothin's appearance and to sanctions under Code Civ. Proc. §2025.450.

LACMTA

requests sanctions joint and several against McGlothin and former counsel. Code Civ. Proc. §2025.450(g)(1) provides that sanctions should not be imposed where the circumstances would make such an imposition unjust. No allegations nor evidence suggests former counsel directed plaintiff not to appear; plaintiff's failure to communicate with counsel was the basis for the motion to withdraw. There is no basis to sanction former counsel. Sanctions against McGlothin only.

LACMTA

requests a reasonable hourly rate of \$350/hour. Decl. Preciado, para. 6. LAMTA requests \$1,755 in nonappearance fees. Id. LACMTA requests 2 hours for motion drafting, 1.5 hours for reply and 1 hour for hearing, totaling 4.5 hours. Id. No reply was filed; no hours will be awarded for such. The court awards 3 hours for motion drafting and appearance at hearing, totaling \$1,050. The court awards the requested \$1,755 in nonappearance fees.

GRANTED;

McGlothin to appear at deposition within 30 days on a date, time and location of defense counsel's choosing. Sanctions of \$2,805 payable by McGlothin only within 30 days.